

Liability & Legal Aspects

Mandatory Skills Training — BSIS Required

Duration: 4 Hours

Authority: BPC §7583.6(b) | PC §837 | Title 16 CCR §643(b)



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MODULE 1

Personal, Contractor & Employer Liability

BPC §7583.6(b) | PC §837 | Title 16 CCR §643(b)

Three Tiers of Liability in Private Security

MACCESS INC. | PPO #122729 | LAW |
BPC §7583.6(b)

PERSONAL LIABILITY

Guard is personally liable for their own wrongful acts

Employer authorization does NOT shield personal liability for crimes

False arrest, battery, and defamation are personal torts

BSIS guard card can be individually revoked

Criminal charges against the guard personally

CONTRACTOR / PPO

MACCESS INC. as PPO: vicariously liable under respondeat superior

Negligent hiring: failure to vet leads to liability

Negligent training: failure to certify = increased exposure

PPO license can be disciplined or revoked

Client contracts: PPO indemnifies client for guard acts

PROPERTY OWNER

Client may share liability if they directed the guard's actions

Unsafe premises that contribute to incident = owner liability

Contractual indemnification may shift liability back to PPO

Client may be sued directly if guard is employee vs. contractor

Joint and several liability in multi-party incidents



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MODULE 2

Criminal, Civil & Administrative Liability

BPC §7583.6(b) | PC §837 | Title 16 CCR §643(b)

Criminal Liability

PC §242 — Battery: willful unlawful use of force or violence on another person

PC §240 — Assault: unlawful attempt to commit violent injury

PC §236 — False Imprisonment: unlawful restraint of personal liberty

PC §207 — Kidnapping: forcible, unlawful movement of a person

PC §538d — Impersonating a peace officer — serious criminal offense

Theft by a guard of subject's property during detention

Civil & Administrative Liability

Civil: false arrest, battery, emotional distress, invasion of privacy — compensatory + punitive damages

ADA violations: discrimination against persons with disabilities — federal civil rights exposure

FEHA violations: discriminatory enforcement in California — state civil rights exposure

BSIS Administrative: guard card suspension or revocation under BPC §480

PPO license: discipline, conditions, suspension, or revocation

All three types can arise simultaneously from a single incident



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MODULE 3

BSIS Code & Regulations

BPC §7583.6(b) | PC §837 | Title 16 CCR §643(b)

BSIS Code — Key Statutes & Regulations Every Guard Must Know

MACCESS INC. | PPO #122729 | LAW |
BPC §7583.6(b)

BPC §7583.6

Training requirements: 8-hr PTA/AUF pre-registration; 32-hr skills within 6 months (16 within 30 days); 8-hr annual CE

BPC §7583.7

Powers to Arrest and Appropriate Use of Force — 100% exam score required. Single provider, within 6 months of application (SB 652, eff. Jan 1 2026)

BPC §7583.9

Criminal history background check — DOJ + FBI via Live Scan required for all applicants

BPC §7583.20

Guard card renewal — must renew within 60 days of expiration or registration is canceled; \$44 renewal fee

BPC §480

Grounds for denial / revocation of guard card — certain criminal convictions

BPC §7583.2

Incident reporting — PPO must report use-of-force incidents to BSIS

Title 16 CCR §643(b)

Certificate of Completion — must include: provider name, BSIS license number, course name, dates, hours, and unique serial number

BPC §7582.1

Definition of security guard and licensed PPO — scope of employment



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MODULE 4

The Role of a Security Guard Under California Law

BPC §7583.6(b) | PC §837 | Title 16 CCR §643(b)

What Security Guards CAN Do

Protect persons and property on assigned post (BPC §7582.1)

Make citizen's arrests under PC §837 when lawful conditions are met

Detain shoplifting suspects under PC §490.5 (Shopkeeper's Privilege) with probable cause from personal observation

Use reasonable and proportionate force during lawful citizen's arrest

Observe and document incidents for law enforcement

Request that persons leave private property — and arrest for trespass if they refuse (PC §602 in your presence)

What Security Guards CANNOT Do

Claim or imply peace officer authority — PC §538d (criminal offense)

Conduct warrantless searches beyond safety pat-down during lawful detention

Compel answers to questions

Hold a citizen's arrest subject longer than necessary before delivering to police

Carry firearms without a separate BSIS Firearms Permit and training

Act outside their assigned post or off-duty (no authority beyond assigned scope)

Use force as punishment or after threat has ended



Course Complete

Liability & Legal Aspects

Proceed to the online assessment. A score of 100% is required to receive your BSIS Certificate of Completion per BPC §7583.6(b) | PC §837 | Title 16 CCR §643(b).